

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

BEVLIN NEMBARD

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. BRIAN DIAZ, TAX REGISTRATION NO.
963010, 47th POLICE PRECINCT, IN HIS INDIVIDUAL AND
OFFICIAL CAPACITY, AND P.O. JOHN DOE NO. 1, IN HIS
INDIVIDUAL AND OFFICIAL CAPACITY.**

Defendants,

X

SUMMONS

Index No.

Date Index No. Purchased

**Plaintiff Designates Bronx
County as the Place of Trial.**

Pursuant to C..P.L.R. 503

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: June 5, 2022
Bronx, New York

By Welton K. Wisham, Esq.
Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
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Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

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Defendants,

X

Plaintiff, Bevlene Nembhard, by her attorney, Welton K. Wisham, Esq. of The Law office of Welton K. Wisham, alleges the following upon information and belief, against Defendants, The City of New York, the New York City Police Department, and Police Officers, Brian Diaz and John Doe No. 1, that:

PRELIMINARY STATEMENT

1. This action is filed on behalf of Ms. Bevlene Nembhard, a fifty-eight-year-old African American female who was wrongfully incarcerated in held in custody with cast iron legs restraints around both her legs for approximately seven hours during the course of Plaintiff's arrest.

2. Ms. Nembhard called for police assistance on March 26, 2021, after her hair stylist threaten Plaintiff with a pair of scissors, and refused to allow Plaintiff to leave her hair salon.

3. Officer Diaz arrested Ms. Nembhard despite the fact that Ms. Nembhard had called for police assistance and gave Plaintiff a desk appearance ticket charging Plaintiff with disorderly conduct pursuant to P.L. Section 165.15(3).

4. Officer Diaz issued the citation which indicated that Ms. Nembhard had to appear in the Criminal Court, Bronx County on June, 23, 2021, at 9:00 am.

5. No description of the offense was written on the desk appearance ticket, giving Ms. Nembhard notice of the factual basis for her arrest.

6. On June 23, 2021, Ms. Nembhard, as instructed, appeared in the Bronx Criminal Court to inform the Judge of the mistreatment she was subjected to by the arresting officers and that she was innocent of all and any offense alleged by officer Diaz.

7. Ms. Nembhard was eager to inform the judge and the prosecuting attorney that the police officers created a false narrative with the intent to deprive her of her rights without due process of law.

8. Plaintiff, however, never got a chance to see a judge because she was told to contact legal Aid Society to schedule a video Zoom conference with the Court. Legal Aid failed to return Plaintiff's phone calls to schedule the conference. Plaintiff was made aware in 2022 that the officer failed to draft the required accusatory instrument and that her case had been dismissed.

9. Ms. Nembhard suffered severe anxiety during the course of her arrest and complained to the arresting officers who laughed at the Plaintiff and placed handcuffs around Plaintiff's hands.

10. Plaintiff was driven to the 47th police precinct and taken to the hospital, handcuffed and leg restraints around her legs where she remained for approximately seven hours.

11. That officer Diaz knowingly and willfully engaged in misconduct by charging Plaintiff with crimes for which the officer knew the Plaintiff had not in fact committed at the time of Plaintiff's arrest.

12. This action is brought pursuant to 42 U.S. Section 1983, and under New York State Law to redress Plaintiff's rights secured under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for False Arrest, False Imprisonment, Unreasonable Search and Seizure, and emotional distress which caused the Plaintiff to be deprived of her liberty and forced to wear leg restraints for seven hours without legal justification

JURISDICTION

13. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, County of the Bronx.

14. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C. Section 1983, and under Article I Section 12 of the Constitution of the State of New York.

15. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

VENUE

16. Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a), and based on the fact that incident complained of occurred in the Bronx, New York.

PARTIES

17. Plaintiff, Bevline Nembhard at all relevant times herein is a resident of the State of New York and residence in Bronx, County.

18. Ms. Nembhard is a fifty-eight-year-old African American female and is a citizen of the United States who has never been arrested during the course of her life.

19. The Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

20. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant, police officers, Brian Diaz.

21. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City police officers obey the laws of the State of New York and the laws of the Constitution of the United States.

22. Defendants, police officers, Brian Diaz and John Doe No. were at all times relevant throughout this Complaint, police officers employed by the New York City Police Department who are believed to be assigned to the 47. police precinct located at 4111 Laconia Ave. Bronx, New York.

23. That at all relevant times, officers Diaz and John Doe No. 1. were acting within the scope of her employment as police officer of the City of New York and under the color of state law.

24. At all times relevant herein, the Defendants, as a police officers of the City of New York, were and still remain, a police officers employed by the New York City Police Department who

acted in the capacity of agents, servants and employees of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of State law.

JURY DEMAND

25. Plaintiff demands trial by jury.

NOTICE OF CLAIM

26. Plaintiff, in furtherance of her New York State causes of action for malicious prosecution, timely filed a Notice of Claim on or about April 26, 2022, well within the statutory ninety days of the incident alleged herein and dismissal of the false allegations against Plaintiff by the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

27. On May 10, 2022, the Comptroller of the City of New York acknowledge receipt of the Plaintiff Notice of Claim by assigning Claim number 2022PI013096 to Plaintiff's Notice of Claim.

28. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

29. This action has been commenced within one year and ninety days of the date of the notice of dismissal of Plaintiff's Desk Appearance ticket and of the filing of the notice of claim.

30. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

31. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

32. That by reason of the foregoing, Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

33. On March 25, 2021, at approximately 3:30 pm, Ms. Nembhard entered the Sharay's Beauty Salon and Beauty Supply Store located on 4034 White Plains Road, Bronx, New York for the sole purpose of getting her hair treated and styled

34. Plaintiff specifically asked her hair stylist, Carleen, for a shampoo and that she wanted extensions sewed on her hair.

35. Plaintiff's hair stylist, Carleen, removed Ms. Nembhard's weave and began to apply shampoo on Plaintiff's hair.

36. Ms. Nembhard and Carleen agreed prior to Carleen's performance that Plaintiff would pay \$ 130 to Carleen to perform the services requested by the Plaintiff.

37. That as Carleen began to apply the shampoo, Ms. Nembhard's scalp began to itch uncontrollably.

38. Ms. Nembhard became quite concerned and told her hair stylist that her hair was itching uncontrollably. Carleen told Claimant it was probably due to dry scalp.

39. As Plaintiff began to complain about the itch in her hair an unknown customer inside the salon overheard Ms. Nembhard complaining about her itching hair and told Plaintiff about a product Ms. Nembhard could purchase in another beauty supply store to treat the condition of her itching scalp.

40. Carleen became extremely angry when she heard the customer informing Ms. Nembhard how to treat the itch in her hair.

41. Carleen responded by telling the customer in a loud rude voice that "don't ever , ever tell any fucking body about any product"! (Emphasis added)

42. Ms. Nembhard responded by telling Carleen "You didn't tell me about any product while you were shampooing my hair, I don't see anything wrong with the customer telling me about the product."

43. Carleen was standing directly in Ms. Nembhard's face yelling, screaming and shouting at the Plaintiff yelling ."**I'm the hair dresser here,! If anybody should tell you it's me"**!

44. Plaintiff replied by saying to Carleen " I'm happy to hear about something to help my hair" !

45. Ms. Nembhard became surprised and dismayed when Carleen responded by yelling at Ms. Nembhard to "**Get out of my blood chair."**! (Emphasis added)

46. Ms. Nembhard responded by telling Carleen. " But my hair is not finished"!

47. Carleen responded by informing the Claimant that "**I'm not going to finish your blood clot hair"**! **You still got to pay me"**! (Emphasis added)

48. In Jamaica, the use of the word "**Blood**" is used as a derogatory and despicable term. **Carleen is Jamaican.**

49. Ms. Nembhard was insulted by Carleen's insults against her and told Carleen. " **I'm a customer here ."**" **I don't expect to be treated this way. (Emphasis)**

50. Plaintiff proceeded to get out of the chair she was sitting in during Carleen's rants.

51. That in response, **Carleen responded** by saying" **I don't give a fuck pay me and get out of here."**!

52. Carleen got visibly upset and grabbed a pair of pink scissors from her purse and pointed the scissors directly in Ms. Nembhard's face and told the Plaintiff that " **I'm going to stab you if you don't pay me."**! (Emphasis added)

53. Ms. Nembhard, fearing for her life, **called 911 for police assistance.**

54. Plaintiff Nembhard informed the 911 operator that there was a lady coming towards her with a pair of scissors and that the woman threatened to stab her.

55. Officer Brian Diaz and officer John Doe No. 1. responded within minutes.

56. As soon as Ms. Nembhard hung up the phone with the 911 operator, Carleen, approached the Plaintiff with the scissors in hand, told Ms. Nembhard, "You're not leaving."!

57. Officer Diaz and his partner entered the store. and immediately approached Carleen.

58. The officers failed to ask for the person who made the 911 emergency telephone call.

59. The officers spoke briefly with Carleen and ignored Ms. Nembhard as Plaintiff stood alone, waiting to speak with the officers about the nature of her emergency telephone call.

60. That a male, African American police officer, John Doe No. 1, told officer Diaz to arrest the Plaintiff.

61. Neither officer spoke with Ms. Nembhard prior to Plaintiff's arrest regarding the incident which occurred which triggered the 911 call by Ms. Nembhard .

62. Officer Diaz ordered Ms. Nembhard to pay the hair stylist the amount claimed for the partial performance irrespective of the failure by Carleen to properly treat Ms. Nembhard's hair and without speaking to the Plaintiff regarding the threat made against her by Carleen.

63. Ms. Nembhard refused to pay for services that were not performed.

64. Officer Diaz placed Ms. Nembhard in handcuffs and drove her to the 47th police precinct on Laconia Ave. Bronx, New York. Ms. Nembhard was arrested at approximately 3:04 pm.

65. Ms. Nembhard began to experience anxiety and thought that she was having issues with her heart.

66. Plaintiff informed the arresting officer of her medical condition and requested the officers to take Plaintiff to the hospital.

67. The arresting officers however, ignored Plaintiff's request and drove Plaintiff to the police station.

68. Approximately one hour later, on March 25, 2021, Ms. Nembhard was driven by EMT. in the presence of the arresting officers and taken to the Montefiore Medical Center. Wakefield Emergency Center located at 600 East 233rd St. Bronx, New York. According to hospital records, Ms. Nembhard arrived at the hospital at **10:18 pm**

Plaintiff placed in shackles:

69. Ms. Nembhard was handcuffed and her legs were placed in shackles at the police precinct as she continued to complain about her chest pains.

70. Plaintiff kept informing the arresting officers that she felt as though her chest was going to explode.

71. Ms. Nembhard had difficulty walking to the ambulance due to the shackles around her legs.

72. Plaintiff remained at the hospital for several hours awaiting medical treatment complaining of anxiety.

73. Plaintiff was brought in by EMS from the police precinct in police custody.

**Officer Diaz falsely claims
Plaintiff on crack.**

74. That one of the arresting officers told doctors at the hospital that Ms. Nembhard had **taken crack and gotten into a verbal dispute with her hair stylist.** (Emphasis added)

75. Ms. Nembhard has never taken Crack cocaine and there was no evidence that Claimant had crack on her possession at any point in time of her arrest.

Police shackled Plaintiff to bed.

76. Ms. Nembhard was shackled to a hospital bed with one arm handcuffed behind her head for approximately three hours.

Excessive force

77. Officer Diaz grabbed Plaintiff around her shoulders and picked Ms. Nembhard up from her chair and tossed Ms. Nembhard into a wheelchair at the hospital prior to being placed in a hospital bed.

Diaz laughing at Plaintiff

78. Ms. Nembhard told officer Diaz that she was in pain .

79. Officer Diaz, responded by telling Ms. Nembhard, “ **I’m not here to make you comfortable.”!**

80. The officers began to laugh at Ms. Nembhard as she withered in pain complaining about her arrest and the officers’ mistreatment.

81. Ms. Nembhard Claimant was taken from the hospital back to the 47th precinct where she was again fingerprinted and photographed and placed in a jail cell where she remained for approximately two hours before being released.

82. Plaintiff remained at the hospital for approximately five hours.

83. Officer Diaz gave Claimant a Desk Appearance Ticket to appear in Bronx, Criminal Court on June 23, 2021.

84. The Desk Appearance Ticket listed P.L. Section 165.15 as the charge against the Plaintiff.

85. On June 23, 2021, Ms. Nembhard appeared in Court as directed and was given a sheet of paper by Court officers to call attorneys associated with the Legal Aid Society to assist the Plaintiff with the virtual appearances and to be assigned to legal counsel.

86. Ms. Nembhard called the phone numbers provided by the Court to no avail. None of the attorneys responded to Ms. Nembhard's calls.

87. Ms. Nembhard, concerned about the false allegations and the officers' mistreatment, continued to reach out to the legal aid attorneys regarding the status of her case.

88. Plaintiff continued to make calls regarding her arrest **yct no one contacted her.**

89. Ms. Nembhard was caused extreme anxiety for twelve months not knowing the status of her arrest, no one called her regarding the June 23, 2021, return date for which her case was not on the court's calendar.

90. On or about March 20, 2022, Ms. Nembhard, out of frustration went to the Bronx Criminal Court to inquire about the status of her arrest on March 25, 2021.

91. The clerk of the court informed Ms. Nembhard that there **was no record of her arrest or prosecution and that there wasn't an arrest report on file.** (Emphasis added)

92. Ms. Nembhard was advised to go across the street to the Bronx County District Attorney's Office to ascertain the status of her criminal case.

93. Upon arriving at the Bronx District Attorney's office Claimant was met by Mr. Michael K. Kilcommons, Assistant District Attorney, Bronx District Attorney Office.

94. Mr. Kilcommons informed Ms. Nembhard that the Bronx District Attorney's office had declined to prosecute the Desk Appearance Ticket under arrest number **B21608937 in the Complaint room because an accusatory instrument had not been drafted.**

95. That officer Diaz was responsible for drafting the accusatory instrument and knowingly failed to do so because the Respondent officer knew that he lacked probable cause in arresting Claimant on March 25, 2021.

96. That on March 21, 2022, Ms. Nembhard received an email from Concetta Petrio, Deputy Bureau Chief , Assistant District Attorney of the Office of the Bronx District Attorney informing Claimant the she is the Deputy Bureau Chief in charge of the Complaint Room/Arraignments/DAT Burau and that up” upon reviewing the records of the Bronx District Attorney’s Office the case against Bevline Nembhard was declined to prosecute in the Complaint Room, meaning an accusatory instrument was not drafted”.

97. That Ms. Nembhard was upset that she had never been notified or informed that the case had been dismissed.

98. Ms. Nembhard suffered depression as a result of the Defendants’ extreme and outrageous conduct of arresting Plaintiff without probable cause and holding her in police custody for hours in leg restrains and handcuffs knowing that Plaintiff had not been engaged in criminal activity.

99. Plaintiff was caused to feel like a criminal from the events set forth herein.

100. Officer Diaz knowingly and willfully failed to draft an accusatory instrument in support of his allegations against the Plaintiff.

101. Officer Diaz knew he lacked evidence sufficient to support his false allegations and deliberately ignored his duty and failed to draft and file an accusatory instrument against Plaintiff Bevline Nembhard.

**Pattern and Practice
of failing to file accusatory
instruments after arrest.**

102. The New York City Police Department has a long history, of arresting individuals without probable cause and failing to file accusatory instrument subsequent to arrestees' detention causing dismissal of Defendant's arrest..

103. That the history set forth herein within the New York City Police Department by the New York City Police Commissioner constitutes an unconstitutional pattern and practice by New York City Police officers of arresting individuals without probable cause by failing to draft and failing to file accusatory instruments.

104. That the practice is known by and tolerated by policy makers of the City of New York including the past and present New York City Police Commissioners.

History of arrestee's cases dismissed and officers' failure to draft accusatory instruments

a) Clarence Ross

105. On November 2, 2018, September 10, 2018, September 17, 2020 ad December 9, 2020. **Defendant, Clarence Ross** was unlawfully arrested without probable cause and held in custody for hours upon hours voicing his innocence.

106. Mr. Ross was arrested under arrests numbers, B18649496, B18641522, B20624083, B20624078, B20624080, and B20632684.

107. That Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Bronx District Attorney's office, informed Mr. Ross in writing, that the above arrests had been dismissed because an accusatory instrument **had not been drafted**.

108. That Mr. Ross was arrested by police officer Simpson, Tax Registration No. 959237, charged with illegal possession of burglary tools P.L. 140.35, Aggravated Unlicensed Operation, VTL 0511 03A2, Resisting Arrest, P.L.205.30, Obstruction of Governmental Administration,

P.L. 195.05, Criminal Possession of a Firearm/Weapon, P.L. 265.01 901), and Disorderly Conduct, P.L. 240.20.

109. The charges against Mr. Ross were never filed. Officer Simpson prepared the above arrest reports in the **44th police precinct**.

110. That officer Simpson's supervisor at the precinct, Agt. Timothy J. Burke, approved the arrest reports prepared by officer Simpson.

111. Yet, officer Simpson knowingly and willfully failed to draft the accusatory instruments and submit such documentation to the Bronx Criminal Court.

112. That the Bronx District Attorney's Office dismissed the criminal case against Mr. Ross as set forth above. Officer Simpson was upon information and belief, allowed to arrest and falsely accuse Mr. Ross without probable cause and without fulfilling his duty to draft and file the required criminal accusatory instruments associated with such arrests.

b) Victor Mendeng

113. That on April 26, 2022, Peter Lomp, Assistant District Attorney Queens County informed Mr. Victor Mendeng that his arrest on April 26, 2022 had been **dismissed prior to Criminal Court arraignment**.

114. Mr. Mendeng was arrested and charged with violating P.L. 160.10 02(A), Robbery in the 2nd Degree, A Class C Felony.

115. Mr. Mendeng vehemently protested his innocence but to no avail as the arresting officer unlawfully caused Mr. Mendeng to be held in custody for three days without probable cause.

116. The arresting officer, Detective Sheldon C. Franklyn failed to bother to draft the accusatory instruments required by law and submit such draft to the Queens District Attorney's office.

117. Mr. Mendeng case was dismissed and sealed.

c) Meyon Grant

118. That on September 24, 2021, Assistant District Attorney, and Deputy Bureau Chief, Concetta Petrillo, of the Bronx Office of the District Attorney wrote a letter to Ms. Grant indicating that Ms. Meyon Grant's case, under arrest number B21624088 had been dismissed because, "An accusatory instrument was not drafted". (Emphasis added)

119. On September 7, 2021, at approximately 5:26 pm. Ms. Grant and her cousin, (a minor whose name is protected and not disclosed), received an invitation from a friend to come and hang out at 1682 Seward Ave, Bronx, New York, a residential complex.

120. Ms. Grant had never gone to this address prior to September 7, 2021.

121. That Ms. Grant, had no physical control over the area in the living room nor did Plaintiff have any control over any property inside 1682 Seward, Ave. Bronx, New York at the time of her arrest.

122. Plaintiff Grant did not live or reside at the above address nor was she a tenant or related to anyone inside the premises.

123. Ms. Grant and her cousin went inside the apartment and sat down in the living room.

124. That minutes after Ms. Grant had arrived inside the premises, Plaintiff heard a loud knock and banging on the front door.

125. Ms. Grant heard someone outside the door yelling "open the door if you don't open the door you will be in more trouble".

126. Ms. Grant, fearing that something awful could occur, got up and opened the door.

127. The police stormed inside the home and immediately seized two men inside the apartment who were in the back room to the apartment.

128. That officer Sidneus then told Ms. Grant and her cousin that they were under arrest.

129. Ms. Grant, a twenty-year-old African American female protested her arrest and repeatedly asked the officers why she was being arrested.

130. Ms. Grant was held in custody for twenty-four hours without probable cause.

131. Officer Sidneus created police arrests reports in the 43rd police precinct accusing Ms. Grant of Criminal Weapons Possession. No weapon was found on Ms. Grant who was an invitee in the premises and had only been in the residence for several minutes.

132. Again, an officer in the New York City Police Department, knowingly and willfully failed to draft the accusatory instrument formally charging then Defendant GRANT OF A Crime.

133. Ms. Grant's was caused to appear in court and found that her case was dismissed because the officer failed to draft the accusatory instrument.

134. **Bevline Nembhard's arrest has not been sealed and has prevented the Plaintiff from finding employment from her false arrest which remains on her record.**

135. That on March 21, 2022, Bevline Nembhard, received written notification that her arrest on March 25, 2021, in Bronx County, under arrest number B21608937 had been dismissed because the Bronx District Attorney office declined to prosecute because " an accusatory instrument was not drafted".

Lost Income

136. That on or about January 31, 2022, Ms. Nembhard was employed at the First Student Bus Co as a school monitor in Yonkers New York.

137. Plaintiff's employer required all employees to be subjected to having their fingerprints taken for a background check.

138. Ms. Nembhard's fingerprints were taken by her employer on or about February 2022.

139. On April 4, 2022, Ms. Nembhard was told via telephone by a dispatcher supervisor the she had been arrested and would not be allowed to continue her employment with the Bus Company.

140. Ms. Nembhard has been unable to find employment since her arrest.

141. That apparently Plaintiff's arrest has not been sealed because Plaintiff was not arraigned in front of a judge.

142. That Plaintiff Nembhard suffered physical and emotional injuries caused by officer Dian during the course of his unlawful arrest and unreasonable seizure of the Plaintiff.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICERS FOR
FAILING TO DRAFT ACCUSATORY INSTRUMENTS PURSUANT TO
42 U. S. C. SECTION 1983.**

143. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "142", with the same force and effect as though more fully set forth at length herein.

144. That at all time herein mentioned police officers Brian Diaz and John Doe No. 1, directly participated and caused Plaintiff's injuries, false arrest, detention, imprisonment, and deprivation of Plaintiff's liberty by arresting Ms. Nembhard without probable cause to have reasonably believed Plaintiff had committed a crime or offence.

145. Officers Diaz and his partner John Doe No.1, knowingly and willfully held Plaintiff in custody for several hours and arrested Ms. Nembhard for disorderly conduct et failed to draft and submit **an accusatory instrument describing the criminal conduct to the Bronx Criminal Court.**

146. That the City of New York has been aware of willful and intentional failure by New York City Police officers to draft and file written accusatory instruments supporting numerous arrests of innocent individuals such as the Plaintiff.

147. That at all relevant times the City of New York, with deliberate indifference to the risk of injury of incarceration to innocent members of the public, failed to train, supervise or discipline police officers who knowingly and willfully failed to draft and file accusatory instruments.

148. That the custom and or practice by the New York City Police Department and its police officers who knowingly failed to train, supervise and or discipline police officers who arrest members of the public and fail to draft accusatory instruments is indicative of a widespread policy of allowing police officers to make unlawful arrests causing individuals the loss of liberty and emotional distress of being denied their right to liberty without probable cause.

149. That the failure to properly train, supervise and or discipline New York City Police officers for knowingly and willfully failing to draft accusatory instruments and submit such instrument to the Courts is indicative of lack of probable cause for such arrests which presents a clear and present danger to the public that their constitutional rights will be infringed by an unconstitutional de facto policy of allowing police officers to deliberately arrest individuals without probable cause.

150. That the City of New York, has known and tolerated the unconstitutional policy and practice which served as the moving force behind Plaintiff's arrest.

151. That officer Diaz and John Doe No. 1, directly and proximately caused the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States with the specific intent to cause Plaintiff Bevlene Nembhard

emotional harm by placing Ms. Nembhard under arrest and in police custody, in handcuffs and with leg restraints around Plaintiff's legs.

152. The acts complained of herein, were carried out by the Defendants police officers in their official capacity as police officers of the New York City Police Department pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

153. The City of New York through its policy makers , including the Commissioners of the New York City Police Department and its agents were fully aware of and did nothing about its police officers engaging in arresting individuals such as the Plaintiff without probable cause and without filing or drafting accusatory instruments as required by law.

154. As a direct and proximate result of the City's failure to train, supervise or discipline the Defendant officers for failure to file written accusatory instruments constitutes deliberate indifference which caused Plaintiff to sustained damages as set forth herein.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS BRIAN DIAZ AND JOHN DOE NO. 1 FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEARCH, SEIZURE AND UNREASONABLE USE OF FORCE UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE CONSTITUTION OF THE UNITED STATES

155. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "154", with the same force and effect as though more fully set forth at length herein.

156. Plaintiff call 911 to report that she had been threaten by her hair stylist, Carleen who had held Plaintiff captive with a pair of scissors because Ms. Nembhard refused to pay for services that had not been rendered.

157. Officer Diaz shoved, pushed and laughed at the Plaintiff as Plaintiff was in the hospital seeking medical attention for her anxiety caused by the arresting officers.

158. That officer Diaz ignored Plaintiff's 911 call for police assistance and arrested Plaintiff without ascertaining who had made the call for emergency police assistance.

159. Plaintiff was placed in legs restrains as she was driven from the police precinct to the hospital suffering from anxiety due to the officer's unlawful arrest.

160. That Plaintiff was handcuffed to a hospital bed by officer Diaz.

161. The arrest, seizure and use of force was patently unreasonable and violated Plaintiff's rights under the Fourth and Fourteenth Amendments.

162. The arresting officers enjoyed themselves in laughing and humiliating Ms. Nembhard during the course of Plaintiff's arrest.

163. Office Diaz told doctors at the hospital that Plaintiff was on crack knowing that there was no crack found on the Plaintiff at the time of her arrest.

164. Officer Diaz's false statement were made to dehumanize Ms. Nembhard, an African American female.

165. That placing legs restraints on Plaintiff's legs for seven hours as Plaintiff was seeking medical treatment inside the emergency room at Montefiore Hospital was constituted an unreasonable seizure under the Fourth Amendment to the Constitution of the United States.

166. For the reasons set forth herein, officers Brian Diaz and John Doe No. 1 are liable to the Plaintiff pursuant to 42 U.S.C Section 1983, for the physical injuries and emotional distress inflicted upon the Plaintiff by the Defendants unreasonable and unlawful seizure and unreasonable use of force in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST POLICE OFFICERS BRIAN DIAZ AND JOHN DOE No. 1, FOR FALSE ARREST AND FALSE IMPRISONMENT
PURSUANT TO 42 U. S .C. SECTION 1983.**

167. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 166", with the same force and effect as though more fully set forth at length herein.

168. That at all time herein mentioned Defendants police officers Brian Diaz and John Doe No. 1, directly participated and caused Plaintiff's injuries and false arrest, detention and deprivation of liberty by arresting Ms. Nembhard as more fully described in the preceding paragraphs without probable cause.

169. That the officers knew that there was no reasonable basis for Ms. Nembhard's arrest, detention, harassment, and humiliation by handcuffing Plaintiff to a hospital bed with her legs bound in shackles.

170. That the Defendant police officers met with each other and conferred false, misleading information against Ms. Nembhard and caused Plaintiff's arrest.

171. Plaintiff was unreasonably held in custody unable to move and unreasonably seized and arrested by the Defendant police officers.

172. Ms. Nembhard was conscious of her arrest, detention and seizure and did not consent to her confinement.

173. Plaintiff's arrest, seizure and detention in police custody lacked probable cause.

174. Defendants officers Brian Diaz and John Doe No. 1, as police officers in the City of New York acted in substantial abuse of their power as New York City Police Officers and acted beyond their authority.

175. The officers willfully, knowingly, and intentionally deprived Plaintiff Nembhard of her right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

176. Defendants forcibly handcuffed, searched, seized, assaulted, and subjected Plaintiff to undue humiliation, personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn by placing shackles on Plaintiff's legs for seven hours without legal justification.

177. As a direct and proximate result of Officers' Diaz and John Doe No.1 misconduct, and abuse of authority described above, Plaintiff Bevine Nembhard sustained damages for which he now seeks in an amount which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST OFFICERS BRIAN DIAZ
AND JOHN DOE NO. 1 FOR MALICIOUS PROSECUTION PURSUANT TO 42 U.S.C
SECTION 1983.**

178. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 177", with the same force and effect as though more fully set forth at length herein.

179. That the Defendants police officers, Brian Diaz and John Doe No. 1, were was acting within the scope of their employment and under color of law at the time of Plaintiff's arrest.

180. The underlying Defendants as New York City Police Officers were personally involved in the unlawful arrest and knowingly prepared false statements in their arrest reports in an attempt to charge the Plaintiff for crimes which the officers knew were false.

181. Plaintiff Nembhard was deprived of her freedom for approximately seven hours without probable cause.

182. The Defendant police officers, exhibited deliberate indifference to Plaintiff's Constitutional rights by arresting Ms. Nembhard without probable cause and failing to draft an accusatory instrument.

Probable Cause

183. Probable cause to arrest exists when the arresting officer has knowledge or reasonably trustworthy information of facts and circumstances that are sufficient to warrant a person of reasonable caution in the belief that the person to be arrested has committed or is committing a crime. See **Escalera v. Lunn**, 361 F.3d 737, 743 (2d Cir. 2004)

184. The probable cause inquiry is based upon whether the facts known by the arresting officer at the time of the arrest **objectively provided probable cause to arrest.**" **Jaegly v. Couch**, 439 F.3d, 149, 153(2nd Cir. 2006) (Emphasis added)

185. That officer Diaz and John Doe No. 1, knew they lacked probable cause and exhibited their lack of probable cause to arrest the Plaintiff and willfully failed to submit an accusatory instrument under penalty to the Bronx Criminal Court.

186. That the arrest of Ms. Nembhard was made with malice based on the circumstances set forth more fully in the preceding paragraphs when the officers laughed at the Plaintiff and falsely informed doctors in the hospital that Plaintiff was on crack.

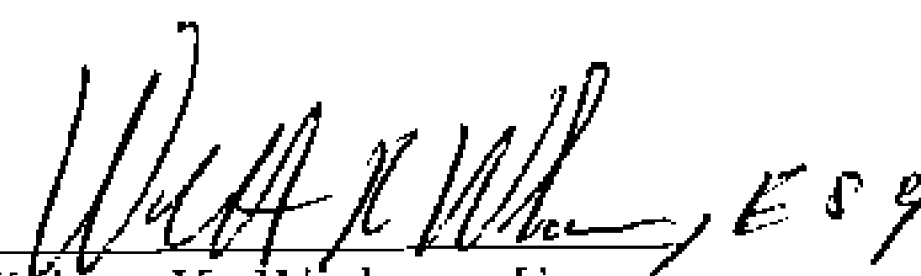
187. The prosecution was terminated in Plaintiff's favor.

188. That by reason of the foregoing, Plaintiff has been injured and has been caused to suffer great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff Bevine Nembhard hereby demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff against officers Brian Diaz and John Doe No. 1, in an amount that would punish the Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: June 4, 2022
Bronx, New York

By  Esq.
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

BEVLIN NEMBARD

AFFIDAVIT

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. BRIAN DIAZ, TAX REGISTRATION NO.
963010, 47th POLICE PRECINCT, IN HIS INDIVIDUAL AND
OFFICIAL CAPACITY, AND P.O. JOHN DOE NO. 1, IN HIS
INDIVIDUAL AND OFFICIAL CAPACITY.

Defendants,

X

STATE OF NEW YORK)

)

ss.:

COUNTY OF BRONX)

I, **Bevline Nembhard**, duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters, deponent believes them to be true.

Bevline Nembhard

Bevline Nembhard

1103 East 222nd St.

Bronx, New York 10469

Sworn to before me

This 17th day of June, 2022

[Signature]
NOTARY PUBLIC

WILLIAM K. HARRIS, ESQ.
Notary Public, State of New York
No. 0248382428
Qualified in Bronx County
Commission Expires 1-28-2023

0248382428
1-28-2023